



PRESENT:

THE HON'BLE THE CHIEF JUSTICE MRS. MANJULA CHELLUR
&
THE HONOURABLE MR.JUSTICE K.VINOD CHANDRAN

WEDNESDAY, THE 23RD DAY OF JANUARY 2013/3RD MAGHA 1934

W.P.(C).No.211 of 2012 (S)

PETITIONER:-

ROBIN CHACKO, AGED 54 YEARS,
S/O.LATE P.C.CHACKO,
PYNUMMOOTTIL HOUSE, MAKKAMKUNNU,
PATHANAMTHITTA, PIN -689 645.

BY ADVS.SRI.SHAJI P.CHALY
SRI.S.GOPAKUMAR

RESPONDENTS:-

1. STATE OF KERALA,
REPRESENTED BY THE SECRETARY- DEPARTMENT OF ENVIORNMENT,
PATTOM P.O., THIRUVANANTHAPURAM - 695 004.
2. THE DISTRICT POLLUTION CONOTROL BOARD,
PATHANAMTHITTA, MAKKAMKUNNU, PATHANAMTHITTA - 689 645.
3. THE DISTRICT COLLECTOR,
PATHANAMTHITTA, COLLECTORATE, PATHANAMTHITTA, PIN - 689 691.
4. THE SUPERINTENDENT OF POLICE,
PATHANAMTHITTA DISTRICT, PATHANAMTHITTA, PIN - 689 691.
5. MANNARA MALA DEVI TEMPLE,
REG.NO.P218/90, MAKKAMKUNNU, PATHANAMTHITTA - 689 645,
REPRESENTED BY ITS SECRETARY.
6. ASSEMBLY OF GOD,
SPIRITUAL FEST CENTRE, NEAR J MART, PATHANAMTHITTA - 689 645,
REPRESENTED BY ITS SECRETARY.

R1, R3 & R4 BY ADDL. ADVOCATE GENERAL SRI.K.A.JALEEL.

R2 BY STANDING COUNSEL SRI. M.AJAY.

R5 BY ADVS. SRI.JACOB P.ALEX
SRI.JOSEPH P.ALEX

R6 BY ADVS. SRI.M.S. UNNIKRIISHNAN
SMT. JAYASREE MANOJ
SRI.K. SUNIL
SRI.P.A. WAZEEM

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
31.12.2012, THE COURT ON 23-01-2013 DELIVERED THE FOLLOWING:-



W.P.(C).NO.211 OF 2012-S

APPENDIX

PETITIONER'S EXHIBITS:-

- EXT.P1 - TRUE COPY OF THE MASS PETITION SUBMITTED BEFORE THE 4TH RESPONDENT BY THE PETITIONER AND OTHER RESIDENTS DATED 25.11.11.
- EXT.P1A - TRUE COPY OF ENGLISH TRANSLATION OF EXHIBIT P1.
- EXT.P2 - TRUE COPY OF THE REPORT OF THE SUB INSPECTOR, PATHANAMTHITTA DATED 8.12.11.
- EXT.P2A - TRUE COPY OF ENGLISH TRANSLATION OF EXHIBIT P2.
- EXT.P3 - TRUE COPY OF THE COMMUNICATION ISSUED BY THE 2ND RESPONDENT TO THE 3RD RESPONDENT DATED 7.12.11.
- EXT.P3A - TRUE COPY OF ENGLISH TRANSLATION OF EXHIBIT P3.

RESPONDENT'S EXHIBITS:-

- EXT.R5(a) - PETITION DATED 06.02.2012.

(TRUE COPY)

vku/-



Manjula Chellur, C.J. &
K.Vinod Chandran, J.

W.P.(C).No.211 of 2012-S

Dated this, the 23rd day of January, 2013

JUDGMENT

K.Vinod Chandran, J.:

The petitioner, a resident of Makkamkunnu in Pathanamthitta District, attempts to ventilate the grievance of himself and other residents of the locality, by this public interest litigation; against the acute noise pollution caused by the 5th and 6th respondents. The 5th respondent is a temple and the 6th respondent is a religious denomination; both of whom are alleged to be using loud-speakers indiscriminately in the conduct of religious prayers and playing devotional music, causing noise pollution in the locality. The petitioner was before the various district authorities as also the Kerala State Pollution Control Board and finding no abatement of the noise pollution alleged, is before this Court.



2. The Kerala State Pollution Control Board has filed a report stating that as per Rule 2(c) of the Noise Pollution (Regulation and Control) Rules, 2000, the authorities responsible for restricting/prohibiting the use of loud-speakers are the District Magistrate, Police Commissioner or any other officer not below the rank of Deputy Superintendent of Police. The Board expressed its inability to initiate any action against any alleged noise pollution; but has, by Exhibit P3, informed the District Collector of its willingness to assist the "authority" under the Noise Pollution (Regulation and Control) Rules for measuring the sound emanating from the loud-speakers.

3. The 5th respondent has filed an affidavit, specifically contending that the sound system is not being used during night hours and the sound systems, whenever used, are used without causing any annoyance to the people in the locality.

4. The 6th respondent though appears through counsel, has chosen not to controvert the allegations in the writ petition.



5. The District Police Chief, Pathanamthitta has filed a statement, stating that the Circle Inspector of Police having jurisdiction over the area, has summoned the organizers of the 5th and 6th respondents and instructions have been given to avoid noise pollution. It is also specifically stated that the respondents 5 and 6 have been directed to function as per the provisions of the Rules.

6. In this context, it is also apposite to refer to the decision of the Supreme Court in **Church of God v. K.K.R. Majestic Colony Welfare Association, 2000 (3) KLT 651 (SC)**, wherein Their Lordships have categorically held that no religion prescribes for performing prayers through amplifiers and that the use of microphones and loud-speakers by religious denominations are to be within the limits prescribed under the Environmental Laws and Police Acts. It is also pointed out by the learned counsel for the petitioner that "night time" as defined under the Noise Pollution (Regulation and Control) Rules is between 10.00 p.m. and 6.00 a.m.; and there is a



complete prohibition under Rule 5 from using a public address system during night time.

7. In the context of the statement filed by the District Police Chief, the writ petition is disposed of with a direction to the official respondents, that, if any complaint regarding noise pollution, due to indiscriminate use of loud-speakers is received from the residents of the locality, they shall take appropriate action as provided under law to abate and eliminate such pollution caused.

Writ petition disposed of as above. No costs.

Sd/-
Manjula Chellur,
Chief Justice

Sd/-
K.Vinod Chandran,
Judge.

vku/01/01.

(true copy)